

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.10962 of 2024

Md. Samad Khan
.... Accused-petitioner
-Versus-
The State
.... Opposite Party
Mr. Abu Hasnat Md. Mofijur Rahaman, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG with
Ms. Farhana Afroze Runa, A. A. G with
Mr. Abdul Aziz Masud, A. A. G. with
Mr. Md. Shamim Khan, A.A.G
... For the State

Heard and Judgment on 12.03.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 05.11.2023 passed by the learned Senior Sessions Judge, Faridpur, in Criminal Revision No.180 of 2023 upheld the order dated 12.09.2023 passed by the learned Additional Chief Judicial Magistrate, Cognizance Court No.01, Faridpur vide order No.25 arising out of Kotwali Police Station Case No.64 dated 20.07.2023 corresponding to G. R. No.617 of 2023 under table 10(kha)/38/40 appended to section 36(1) of the Madok Drobbo Nintron Ain, 2018, now pending in the court of learned Chief Judicial Magistrate should not be quashed and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Additional Chief Judicial Magistrate, Cognizance Court No.1, Faridpur for getting zimma (custody) of the seized Noah Microbus being Registration No. Dhaka Metro. Cha-53-1020, Chassis No.AZR60-0413725, Engine No.1AZ-5136435, but the learned Additional Chief Judicial Magistrate, Faridpur rejected the said petition by order dated 12.09.2023.

Being aggrieved by above order the petitioner preferred Criminal Revision Case No.180 of 2023 to the learned Senior Sessions Judge, Faridpur who rejected above revision and affirmed the order of the learned Additional Chief Judicial Magistrate vide impugned order dated 05.11.2023.

Challenging the legality and propriety of above judgment and order the petitioner has moved to this court and obtained this Rule.

Mr. Abu Hasnat Md. Mofijur Rahaman, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Noah Microbus. Above Noah Microbus is kept in the open sky in front of the Police Station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Noah Microbus and he will ensure better maintenance of the same and produce the Noah Microbus before the Court below whenever he will be asked to do so. But the learned Senior Sessions Judge, Faridpur failed to appreciate above materials on record and most illegally rejected above revisional application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes this petition of the petitioner for getting jimma seized Senior Sessions Judge, Faridpur.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that 3600 pieces of yaba tables were recovered from the seized Noah Microbus.

It further turns out from the police report that the petitioner is the rightful owner of the seized Noah Microbus.

The ultimate fate of above seized Noah Microbus will be determined at trial. But in the meantime above Noah Microbus which is a valuable asset requires proper maintenance and keeping. If the Noah Microbus is given in the jimma of the petitioner who is the rightful owner of the same then the proper maintenance and keeping of the vehicle will be ensured. The petitioner shall produce above Noah Microbus to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Senior Sessions Judge, Faridpur committed an error in rejecting the application of the petitioner seeking jimma of above Noah Microbus which is not tenable in law.

In the result, the Rule is made absolute.

The impugned judgment and order dated 05.11.2023 passed by the learned Senior Sessions Judge, Faridpur in Criminal Revision No.180 of 2023 is set aside.

The learned Senior Sessions Judge, Faridpur is directed to place above Noah Microbus in the jimma of the petitioner with condition that the petitioner shall produce the Noah Microbus to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.